

REVIEW OF CHALLENGED INSTRUCTIONAL AND LIBRARY MATERIALS

This policy considers the views of Loudoun County Public Schools (LCPS) stakeholders in addressing challenges to the instructional and library materials purchased by or donated to the School Division and provides clear procedures for the review and treatment of those materials.

A. Procedure for the Review of Challenged Materials. Challenges to instructional materials are outlined below. All materials in the process of being reviewed shall remain in use or circulation until a final decision is reached.

1. A complainant can be any current LCPS parent, legal guardian of a student, adult student (18 years or older), or instructional staff. If the complainant is a parent/guardian of a student who is currently attending an LCPS school, they may state an objection to and request a review of materials accessible to their student. If the complainant is a member of the LCPS instructional staff, they may state an objection relating to the instructional curriculum and request a review of materials located within the school building where they work. Complainants may challenge instructional material whether primary supplemental or library materials. Before submitting a formal challenge, the complainant must share their concern with an administrator at the school and/or the appropriate content supervisor.

2. The challenge process begins with the submission of a formal complaint.

3. The Division will publish items being challenged on the LCPS website.

B. Division-Level Procedure for Review of Challenged Materials

1. The Superintendent or designee shall appoint a Division-level review committee with at least two Division instructional administrators, two LCPS school-based employees within the school level of the request, and three LCPS parents within the school level of the request. At least one of the school-based employees should be a teacher certified in the content area where the challenge arose. The Division-level committee shall review the material and make a recommendation to the Superintendent.

2. All Division-level review committee members will be provided written guidance related to relevant School Board policies.

3. A Division-level review committee shall review the material in its entirety, as well as any related documents, and make a recommendation to the Superintendent to recategorize, as sexually explicit or not, remove, restrict, or expand access to such materials.

4. The Superintendent shall notify the complainant of their decision, to include impacted levels, in writing as soon thereafter as is reasonably practicable, but within 45 business days of receipt of the formal complaint. The Superintendent's decision shall apply uniformly across the Division.

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C. Appeal to the School Board. The decision of the Superintendent may be appealed to the School Board. Such appeal must be made in writing to the Chair of the School Board within 15 business days of receipt of the decision being appealed. If the decision of the Superintendent is not appealed within 15 business days the Superintendent's decision shall be final.

1. The School Board Chair shall appoint a committee to review the Superintendent's decision. The committee will consist of three School Board members, one of whom the School Board Chair will appoint to chair the committee.

2. The School Board committee shall review the material in its entirety, as well as any related documents, the Division-level review committee decision, and the Superintendent's decision. The School Board committee will affirm, modify, or reverse the decision of the Superintendent based on this review. The committee may also remand the review back to the Superintendent for further investigation.

3. The School Board committee's decision shall be communicated to the complainant who filed the objection and to the School Board as soon thereafter as is reasonably practicable, but within 45 business days of the appeal to the School Board.

4. A summary of the School Board committee's findings shall be provided to all School Board members and shall be formally reported at the next regular meeting of the School Board for inclusion in the minutes of that meeting.

5. The decision of the School Board committee shall be final and shall apply uniformly across the Division at the level it was challenged.

D. Timeline for Additional Actions

1. Division-Level Reviews. Any material(s) challenged and decided at the Division level, either by the Superintendent or the School Board committee, shall not be eligible for challenge under this policy by any complainant until at least four years have elapsed from the original decision. However, this does not prevent the Superintendent, acting on their responsibility for the administration of the education program in the Division, from initiating such action on their own and recategorizing as sexually explicit or not consistent with Policy 5055 Parental Notification of Instructional Materials with Sexually Explicit Content, removing, restricting, or expanding the use of such material(s) before four years have elapsed. The Superintendent shall notify the School Board of such action, which may be subsequently affirmed, modified, or reversed by the School Board.

2. Publication of Decisions. The Division will publish the decision within 10 days of the review on the LCPS website, which shall include brief rationales as part of the public record.

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Adopted: 6/27/23

Cross Refs: Policy [5055](#), Parental Notification of Instructional Materials with Sexually
Explicit Content